

consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

### **Ruling**

1. Plaintiff's Motion is **granted**. The Court orders the Request for Admissions Set one Served on Defendant are deemed admitted, including the genuineness of the documents.
2. Plaintiff's request for sanctions is **granted**. Defendant is ordered to pay monetary sanctions in the amount of \$810.00 to Plaintiff's Counsel within thirty (30) days of this order.
3. The Court will execute the proposed order lodged on November 17, 2025 and will attach a copy of this tentative ruling. The clerk of the court is ordered to file and serve a copy of the order to all parties.

24. 9:01 AM CASE NUMBER: C25-00276

CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD

\*HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PRODUCTION OF NON-PRIVILEGE LOGS

FILED BY: SEARS, CHRISTOPHER, PHD

**\*TENTATIVE RULING:\***

Plaintiff Christopher Sears, PhD's Motion for Order compelling Production of Non-Privileged Materials and Privilege Logs pursuant to Cal. Code of Civ. Proc. § 2031.240(c)(1) and for an In Camera Review under Cal. Evid. Code Section 956 is vacated and referred to the Discovery Referee Summer Nastich, Esq.

The Court admonishes Plaintiff and reminds him that any and all discovery motions shall be referred to the Discovery Referee pursuant to the Court's order appointing Discovery Referee filed on September 19, 2025. Discovery motions should not be filed with the Court after referral.

The Court also places Plaintiff on notice of the following statute: Cal. Code of Civ. Proc. §§ 391(b)(2)&(3) and Section 391.7, which state:

Section 391: As used in this title, the following terms have the following meanings:

(a) "Litigation" means any civil action or proceeding, commenced, maintained or pending in any state or federal court.

(b) "Vexatious litigant" means a person who does any of the following:

(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in *propria persona*, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

(3) In any litigation while acting in *propria persona*, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

Section 391.7(a): In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in *propria persona* without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court.

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